

V. CONCLUSION

Based on the foregoing, the Plaintiffs' motion to vacate the December 6, 2023 judgments in favor of Plaintiff Long Chen and Dan Zhu and against Defendant Asian Square is GRANTED.

The defendant's request in their opposition for discovery on issues raised in this motion is DENIED without prejudice as the issue is not before the Court.

The Court will prepare the formal order.

Calendar Line # 5

Case Name Neelima Naidu et al vs Deepika Jain et al

Case No. 24CV429210

Motion Judgment on the Pleadings

Before the Court is defendants Carroll & Company and Pamela Jean Carroll-Gardiner's motion for judgment on the pleadings against plaintiffs Neelima Naidu, Prashanth Naidu, and Deepika Jain DDS and Neelima Naidu DDS, Inc.'s first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

This is an action arising from the sale of the dental practice Deepika Jain DDS and Neelima Naidu DDC, Inc. ("Blossom Hill Dental Center").

According to the operative first amended complaint ("FAC"), Defendants Carroll & Company and Pamela Jean Carroll-Gardiner (collectively, "Moving Defendants") were required by an escrow settlement statement between the buyer and seller of Blossom Hill Dental Center to keep a contingency hold-back of \$50,000.00. (FAC, ¶ 27). Moving Defendants were also required to pay the contingency hold-back to plaintiff Neelima Naidu within 90 days or upon the seller's showing that all financial obligations were met. (*Id.* at ¶ 28). Moving Defendants failed to do so. (*Id.* at ¶ 31).

The FAC alleges two causes of action against Moving Defendants: (1) breach of written contract II; and (2) declaratory relief. Specifically, the FAC alleges that Moving Defendants breached their written instructions from the escrow settlement statement. (FAC, ¶ 32). And Plaintiff Neelima Naidu ("Naidu") now seeks a judicial determination of her entitlement to the \$50,000 and an order requiring the Moving Defendants to pay her with said funds. (*Id.* at ¶ 57).

On June 11, 2026, Moving Defendants filed the present motion for judgment on the pleadings to the entire complaint. Plaintiff filed a timely written opposition.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 438(f), a defendant's motion for judgment on the pleadings may be made after the time to demur has expired and an answer has been filed. Under a Code of Civil Procedure section 438(c), a motion by a defendant may be made on the grounds that (1) the court "lacks jurisdiction of the subject of one or more of the causes of action alleged" or (2) the complaint or cross-complaint "does not state facts sufficient to constitute a cause of action against that defendant." (Code of Civ. Proc., § 438(c)). "A motion for judgment on the pleadings has the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999). "A motion for judgment on the pleadings is akin to a general demurrer; it tests the

sufficiency of the complaint to state a cause of action.” (*Wise v. Pacific Gas and Elec. Co.* (2005) 132 Cal.App.4th 725, 738).

Code of Civil Procedure section 438(e) sets forth a timeline for statutory motion for judgment on the pleadings, which must be made within 30 days of the date the action was initially set for trial, unless otherwise provided by the Court. However, this only applies to the statutory basis for the motion. (Code Civ. Proc., § 438.) Caselaw after the creation of that statute still recognizes grounds for a common law motion for judgment on the pleadings. (*Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 [recognizing that the motion may be made “at any time either prior to the trial or at the trial itself”]; see also *Cordova v. 21st Century Ins. Co.* (2005) 129 Cal.App.4th 89, 109 [summary judgment motion treated as a common law motion for judgment on the pleadings]; *Tarin v. Lind* (2020) 47 Cal.App.5th 395 [addressing merits of non-statutory motion]).

III. ANALYSIS

Moving Defendants move for judgment on the pleadings of Plaintiff's entire FAC. (Notice, p. 1:1-3). Moving Defendants, however, only argue that the breach of contract cause of action fails to state sufficient facts. (Motion, pp. 5-8). Moving Defendants make no argument challenging the declaratory relief cause of action.

As with a demurrer challenging an entire pleading, a motion for judgment on the pleading directed to an entire pleading fails if any cause of action is properly stated. (See *Warren v. Atchison, Topeka & Santa Fe Ry.* (1971) 19 Cal.App.3d 24, 29, 36 [trial court's sustention of demurrer to entire pleading reversed on ground that a cause of action was stated]; see also *Shook v. Pearson* (1950) 99 Cal.App.2d 348 [a demurrer which attacks entire pleading should be overruled if one of the counts therein is not vulnerable to the objection.]).

Given that Moving Defendants brings this motion challenging the FAC in its entirety and that Moving Defendants fail to bring any substantive argument challenging the declaratory relief cause of action, the Court DENIES Moving Defendants' motion for judgment on the pleadings.

IV. CONCLUSION

Based on the foregoing, the Court DENIES the motion for judgment on the pleadings.

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Calendar Line # 6
Case Name American Express National Bank vs Abhisek Roy
Case No. 24CV454827
Motion for Summary Judgment/Adjunction I. <u>BACKGROUND</u> This case stems from a credit card collections case between Plaintiff American Express National Bank (“Bank”) and Defendant Abhisek Roy (“Roy”). On December 16, 2025, Plaintiff Bank filed this motion for summary judgment against defendant Roy. The motion was accompanied by a proof of service indicating mail service to the plaintiff on that same day. Notice is proper. The motion is unopposed. Per Code of Civil Procedure section 437c(b)(4) opposition papers were due on August 5, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c); <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489). The Court has carefully reviewed the following: notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 8 pages); statement of undisputed material facts (totaling 4 pages); request for judicial notice (totaling 7 pages); evidence in support of the motion (totaling 2 pages); Declaration of Vivian Hinds in support of the motion and attached Exhibits A-C (totaling 139 pages); judgment (totaling 1 page); proposed order (totaling 2 pages); memorandum of costs (totaling 2 pages); proof of service; and the pleadings. II. <u>LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 437c, summary judgment is appropriate when there is no triable issue of material fact as to one or more elements of a particular cause of action. (Code Civ. Proc., § 437c, subs. (f)(1), (o)(1)). The court identifies the causes of action framed by the pleadings. The court then determines whether the plaintiff as the moving party has carried its burden to show that there is no defense to any cause of action by proving each element of the causes of action. (Code Civ. Proc., § 437c, subd. (p)(1)). If the plaintiff makes that prima facie showing, the burden of production shifts to the defendant to show that a triable issue of one or more material facts exists as to the causes of action, or a defense thereto. (<i>Ibid</i>). “The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.” (<i>Ibid</i>). III. <u>ANALYSIS</u> Here, the complaint alleges a single cause of action against defendant Roy: breach of contract. The elements are: (1) existence of the contract; (2) plaintiff’s performance or excuse for nonperformance; (3) defendant’s breach; and (4) damages to plaintiff as a result of the breach. (<i>Aton Center, Inc. v. United Healthcare Ins. Co.</i> (2023) 93 Cal.App.5th 1214, 1230). Plaintiff’s motion is supported by evidence showing that defendant obtained a credit card account from plaintiff that was subject to a customer agreement contract; defendant accepted the terms of that contract by using the credit card; plaintiff extended credit and performed all its obligations under the contract; defendant breached the contract by not making all required payments; and plaintiff suffered damages of \$26,496.18 (i.e., the balance due on the credit card). The last payment on the account was on or about November 29, 2023. (Separate Statement #7). Plaintiff satisfied its initial burden as to both causes of action. Defendant did not oppose the motion. Plaintiff is entitled to summary judgment.